



File No.: EXP202104450

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by ***CARGO.1 - COLEGIO MENOR NUESTRA SEÑORA DE LORETO (MINISTRY OF DEFENSE, AIR AND SPACE FORCE) (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated August 29, 2023, and based on the following

FACTS

FIRST: On August 29, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202104450, by virtue of which a warning sanction was imposed on ***CARGO.1 - COLEGIO MENOR NUESTRA SEÑORA DE LORETO (MINISTRY OF DEFENSE, AIR AND SPACE FORCE)

“a warning sanction for each of the infringements of the GDPR, of the articles:

- 28, in accordance with article 83.4 a) of the GDPR, classified as serious for the purposes of prescription in article 73.k) of the LOPDGDD.
- 13, in accordance with article 83.5 b) of the GDPR, classified as minor for the purposes of prescription in article 74.a) of the LOPDGDD.”

Said resolution, which was notified to the appellant on August 30, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and supplementary to Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00334/2022, the following was recorded:

“1- The Colegio Menor Nuestra Señora de Loreto (CMNSL) is affiliated with the Ministry of Defense through the Patronato de Huérfanos del Ejército del Aire ‘Nuestra Señora de Loreto’. According to the complaint, the data controller for the data processed by the College is ***CARGO.1. The CMNSL is not a Public School.

2- On July 5, 2021, for the 21/22 school year, the complainant, with (...) children under 14 years old at the CMNSL, received from it an email regarding the implementation at the beginning of the school year of the electronic resources provided by Google through the platform ‘GOOGLE WORKSPACE FOR EDUCATION’ (GW), involving the creation of an email address with the name of each student in their Gmail account, under the domain colegiomenorloreto.es.

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The respondent indicates that to register the email of each user/student for educational purposes, he requested authorization from the families, and that upon receiving this, the students' emails were created under the domain: @colegiomenorloreto.es. It is evidenced that the claimant signed on 19/11/2021 an informative note from the school regarding what GW is, what it entails, and “the use for completing tasks, communicating with their teachers, through a provider contracted by the School, necessary for proper school monitoring and a correct provision of educational services.” The document includes a checkbox to mark: “I have read and understand the information,” to which the claimant handwritten adds: “I do not understand,” and “I do not agree with the transfer of data to GOOGLE or any of its subsidiaries or affiliates,” understanding that the respondent interpreted this as not authorizing the use of the system and rejecting its use.

It is evidenced that on 12/07/2021, the School sent the claimant an email titled: “User and password for GW platform,” in which it is noted that Google welcomes the creation of (...) at colegiomenorloreto.es,

for (...) the claimant, inviting to “log in to the GOOGLE account to access the services.” The user appears as nombre.primerapellido@colegiomenroloreto.es, along with a password. It is not evidenced that, since that creation, the account had been used.

The respondent stated in the transfer that the GOOGLE WORKSPACE accounts (...) of the claimant were not activated and that no classes were given with GW nor were any of its tools used. He adds that upon receiving the first welcome email, with user and password, users were required to set a new password that only they would know, being a procedure for “making its creation effective.”

According to the respondent in evidence, the informative document on the use of GW and what it implies with the “I have read and understand the information” was delivered to families in September 2021.

3- The claimant exercised his right of access and opposition to the processing of data through the GW tool before the DPD of the Ministry of Defense on 12/07/2021 (annex 2 of the complaint). Additionally, to this writing, he adds various questions regarding data collection information.

4- The claimant received a response in an email dated 2/8/2021, indicating that the GW solution would be used in the 21/22 school year to address possible contingencies arising from COVID-19 and that prior to the inclusion of data in said platform, express authorization would be requested from the parents or guardians of students under 14 years old, although what was addressed was to inform about the application, without any document showing consent for the use of data from the application in accordance with the GDPR and the LOPDGDD.

5- The respondent submitted a query to the AEPD on 7/10/2021, indicating the use of GW under the agreement signed by the Education Department of the Community of Madrid and GOOGLE on 10/06/2021. The AEPD responded on 15/11/2021 that the provision of cloud computing services implied the obligation to subscribe to a contract or another type of legal act in accordance with the law, with the provisions of Article 28 of the GDPR.

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The respondent states that, after receiving this response, they provisionally suspended the use of GW, with written communications from the School under their command dated 2/12/2021 regarding the issues of not having a platform to conduct classes online in the event that students were confined.

Meanwhile, on 13/01/2022, it is evidenced by a document sent by the School to the LOPD office of the EA that the School hired a consultant to analyze the standard contractual clauses of GOOGLE and the international transfers, informing that they would return to using GW the following week.

They also state that, at the end of May 2022, the use of the platform at the School was ceased and has not been used again.

The respondent indicated that in the 20/21 academic year, they did not use the GW platform.

7- When requested to provide a copy of the agreement signed with GOOGLE for the implementation of the GW service, it was responded that the contract is signed by the School online, accepting the terms of use. The GW platform, as stated in the evidence, began to be used in September 2021 at the CMNSL.

8- The legal basis for the processing of data by the respondent, as stated in their response to the claimant on 2/08/2021, which applies to the processing of GW data, is Article 6.1.e) of the GDPR, “necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller,” consolidated through the right to education in Article 27 of the Spanish Constitution and Organic Law 2/2006, of 3/05, on Education, to facilitate the digitalization of education and access to it for all citizens during the COVID-19 health crisis.

9- The Registry of Treatment Activities - RAT - of the Ministry of Defense, which contains the one related to educational centers, called: “EA. Management of Educational Centers,” version June 22, describes in its PURPOSES (management of places, enrollments and collections, academic history, academic guidance and support, health guarantee, complementary tasks), without expressly mentioning the educational function.

As Legal Bases, it states: “Article 6.1.b) of the GDPR: processing necessary for the performance of a contract in which the data subject is a party or for the application at their request of pre-contractual measures” and based on the essential public service of education, in Article 6.1.e) of the GDPR: “processing necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller,” citing various legal norms, and “explicit consent regarding matters related to minors,” also without detailing which treatments it would relate to.

10- The respondent, in response to the transfer from the AEPD on 7/12/2021, provided a copy in evidence 5 of the “updated information clause on Data Protection and consent that is delivered during the enrollment period to students, highlighting:

a) As the data controller, the Ministry of Defense - Air and Space Force is listed. However, both in the registry of treatment activities and in the statements of the respondent, the data controller is

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b)

It mentions that its processing activities encompass various purposes, including, among others, the educational function, management of enrollment, school records, and medical data. For the purposes of the legal basis for processing, all purposes are framed as educational function, informing that Article 6.1.c) of the GDPR would apply: “the processing is necessary for compliance with a legal obligation to which the data controller is subject.”

c)

For processing activities that require consent (extracurricular activities or use of image/voice in events and activities), there is no information provided regarding the possibility of withdrawing consent and its effects.

After the initiation of the procedure, the respondent has submitted a modification of the “information clause on data protection and consent,” introducing the specificity of the designation of the data controller, following the definition of the various purposes. After receiving the proposal, the respondent has adjusted each legal basis to each purpose, integrating as a legal basis the mission of public interest, Article 6.1.e) of the GDPR concerning the educational function and the option to withdraw consent in processing with this basis.”

THIRD: The appellant submitted on 26/09/2023, to this Spanish Agency for Data Protection, a request for reconsideration, basing it fundamentally on:

1)

The commission of the infringement is attributed to the data controller, ***CARGO.1 - for having entrusted the processing of data validly processed by the School to a third party, GOOGLE, without the formalization of a contract or other written legal act beforehand, with the content required by Article 28.3 of the GDPR. The assertion in the resolution that “it is unaware of the terms under which the services signed by the Director of the School are provided” would acknowledge that there is indeed a written legal act signed between the (...) School “Nuestra Señora de Loreto” and the company GOOGLE (it is to be assumed that with the content required by Article 28.3 of the Regulation, since otherwise the company would not have allowed access to its services), which is why the resolution ultimately grounds the sanction imposed on the fact that the service contract with Google Ireland Limited was not executed by the data controller (i.e., it was not signed by (...) and yes, by someone (...) who lacked prior written authorization, specific or general, from the data controller.

To this end, it explains that the “singular administrative legal nature” of the School, as private, integrated into the Air Force, must be taken into account. It is subject to state regulations in educational matters, and regional regulations, and in control, economic issues, or security depend on the Air Force. Thus, it considers it to have a dual dependency, educational and military.

The “Guide for Educational Centers” of the AEPD, available on the website, indicates that “When it comes to public educational centers, the data controller will normally be the corresponding Public

Administration, and when it comes to concerted and private centers, the data controllers of the data will be the centers themselves,” not addressing the specificity of the referred School. On page 13 of the aforementioned Guide, it states that: “Natural persons who have...

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access to personal data in their capacity as employees of the center or of the educational administration that are responsible for the processing...".

The AEPD sanctions the data controller, ***POSITION.1, but states that the Director of the School, not being responsible for the processing, nor an employee of the center, is a military officer of the Ministry of Defense appointed to the position, and based on the authority to collect data from educational centers (linked to the additional provision 23 of LO 2/2006 on education), considers that their position is different from that of a Director of a private educational center, estimating that their nature and functions align with those of a data processor, with GOOGLE being a second data processor with which the first processor, the Director of the School, signed "a legal act as per Article 28.3 of the GDPR," which is understood to be valid and previously authorized by the data controller who grants general authorization to resort to a second processor, GOOGLE.

Both the data controller and the processor, (...) are appointed (...), and given the content of the additional provision 23 of the Education Act, it is this Director of the School who is authorized to collect and process data from the students of the School that are necessary for the educational function.

It is estimated that the authorization of the first processor, the Director of the School, to a second one is integrated by the legal and regulatory provisions and by administrative acts subsequently issued in application of these provisions, resulting from the distribution of competencies and assignment of responsibilities inherent to the dual dependency.

From the above, it follows as an inevitable consequence that the signature of the data controller is in no way necessary in the written legal act through which the first data processor—the Director of the School—entrusts the processing of data to a second processor GOOGLE, "since we would be in one of the cases regulated in 28.2 of the GDPR where a first data processor ((...) School Minor "Nuestra Señora de Loreto"), with prior written authorization from the controller, resorts to another second processor (Google Ireland Limited) both signing that second legal act in writing perfectly valid whose real existence is not disputed by anyone in the procedure whose final resolution is contested.

2- Regarding the infringement of the duty of information, Article 13 of the GDPR, should the interpretation just pointed out be accepted, "the responsibility would correspond to the first data processor, (...), never to the data controller, and the sanction should fall on the former."

It indicates that it sends, among other documentation, again, the record of processing activities of the Ministry of Defense in which ***POSITION.1 is designated as responsible for the file "EA.

MANAGEMENT OF EDUCATIONAL CENTERS"; Instruction 37/2021 of 1/07 from the Chief of the Air Force General Staff, BOD of 13/07/2021, by which the organization of the Army is developed, today of space.

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I

The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

Regarding the statements made by the appellant, it must be noted that throughout the procedure, the respondent defended that the data controller is the (...), and that during the evidentiary period, it was requested to provide, if any existed, any provision, of whatever rank, that attributed such competence, and the respondent reiterated, just as now in the appeal, that such a responsible party is listed in the RAT, although it also stated in evidence that: “The data controller became aware of the use of the

aforementioned platform by the CMNSL when it received notification through the DPD Office of MINISDEF of the complaint filed by the interested party before the AEPD.”

Regarding the role and performance attributed by law to data controllers and their data processors, it is necessary to mention, without needing to be cited, the various articles in the GDPR and the LOPDGDD that establish their legal obligations, and their non-transferable responsibilities by their own will to another body or center.

As for the appellant's interpretation of the role played by the Director of the educational center in this case regarding the contracting of the data processing task, it should be indicated:

a) The appellant interprets that the online subscription of the GOOGLE service by the School, although subscribed by its Director, would meet the requirements of Article 28 of the GDPR by attributing to the education regulations the capacity to collect data. However, the regulation indicates that it is the centers that may collect the data of their students, necessary for the exercise of their educational function. To this end, it is necessary to differentiate who collects the data from who is the data controller. The reference in the “Guide for Educational Centers” is generic information, with nuances existing thereafter. Thus, apart from the publication mentioned by the appellant, which was not indicated in the resolution, in “Who is the data controller in an educational center?”, there is an entry dated 15/09/2021 on the AEPD website in which a PDF informational strip indicates the distinction between interested parties, controllers, and processors, stating that the data controller is:

“Natural or legal person, public authority, service, or body that determines the purposes and means of the processing carried out. The data controllers of personal data processed by public educational centers are usually the Educational Administration (Department of Education of the Autonomous Community). For the centers in Ceuta, Melilla, and those abroad, the responsible party is the Ministry of Education and Vocational Training. In the processing of personal data carried out by concerted and private centers, the responsible party is the educational center itself (foundation, religious congregation, cooperative, etc.)”

In the section on processors:

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"Natural or legal person, authority, service, or body that processes data on behalf of the controller. The controller determines to whom they delegate the processing that will be carried out. They must be chosen solely from those who provide sufficient guarantees of compliance with data protection regulations. The processor must always act within the framework of the instructions set by the controller. The flow of personal data between the controller and the processor does not constitute a transfer of data. Examples of processors in the educational field: providers of technological services, companies that manage the school cafeteria, the school route, extracurricular activities, etc."

While it is true that the Director of the Menor Nuestra Señora de Loreto School signed the online agreement with GOOGLE, it was already indicated in the resolution that they were not the controller of the aforementioned processing, and that no contract or legal act containing the elements of Article 28 of the GDPR was provided.

b) That the Director of a private educational institution, in this case, is not considered the controller of the processing, because there is already one designated in this case, does not mean that they are the processor, as it is usual for the educational institution, its teachers, and other staff, including, where applicable, the management, to refer and render responsibilities regarding the processing responsibility to the one designated as such.

The European Data Protection Committee, in the development of the functions attributed by Article 70.1.e) of the GDPR, issued Guidelines 07/2020 on the concepts of "data controller" and "data processor" in the GDPR. In point 76, it states:

“To be considered a processor, it is necessary to meet two fundamental conditions:

- a) to be an independent entity from the data controller; and
- b) to process personal data on behalf of the controller...”

While in point 18 it indicates that “Even when a specific natural person is named to ensure compliance with data protection regulations, they will not be the data controller, but will act on behalf of the legal entity (company or public body), which, ultimately, will be responsible, as the data controller, for any potential violations of the regulations.”, reminding that although the School is a private entity in this case, it does not correspond to a commercial entity but is affiliated with the Ministry of Defense through the Orphans' Board of the Air Force "Nuestra Señora de Loreto" and the competencies that the Director of the School may assume must be explicit, without it being stated or inferred that they could process the data as a processor on behalf of the data controller.

2- The automatic delegation of one processor to another is also not applicable when the GDPR states that the subcontracting of a processing task in its Article 28.2 of the GDPR:

“The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thus giving the controller the opportunity to object to such changes.”

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3- Despite the dual configuration of the School detailed by the appellant, educational and organizational, it does not follow that the School or its Director is responsible for the processing of the computer tool owned by GOOGLE used during the pandemic period. Consequently, the responsibility for correctly informing about the collected data and its processing lies with the same responsible party, which does not imply that the educational Center, acting on its behalf, facilitates the delivery and availability of the aforementioned documentation.

III

As a result, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by ***POSITION.1- COLEGIO MENOR NUESTRA SEÑORA DE LORETO (MINISTRY OF DEFENSE, AIR AND SPACE FORCE) with NIF S2801407D, against the resolution of this Spanish Agency for Data Protection issued on 29/08/2023, in file EXP202104450.

SECOND: TO NOTIFY this resolution to the MINISTRY OF DEFENSE, (AIR AND SPACE FORCE- ***POSITION.1- COLEGIO MENOR NUESTRA SEÑORA DE LORETO) with NIF S2801407D.

THIRD: In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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